



CHAPTER 17

An Act to provide for confirming resolutions of the Court of Tynwald with respect to customs duties in the Isle of Man and to authorise the Court of Tynwald to carry out any agreement made with the Government of the United Kingdom as to the payment into the Exchequer of any of the proceeds of those duties.

[6th May, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) If the Court of Tynwald in the Isle of Man—

(a) pass any resolution concerning the duties of customs chargeable on goods removed or imported into the Isle of Man, and

(b) further resolve that it is expedient that the resolution should, if confirmed under this Act, take effect as part of the law concerning those duties,

the resolution shall, if confirmed by Her Majesty by Order in Council, thereafter have effect as if it were contained in an Act of Parliament.

Confirmation
of Tynwald
resolutions.

(2) The references in section two of the *Isle of Man (Customs) Act, 1887* (which relates to the provisional imposition of customs duties), to an Act of Parliament shall include references to a resolution confirmed under this Act, and the reference in paragraph (b) thereof to confirmation by Parliament shall be construed accordingly.

(3) A resolution confirmed under this Act may in particular—

(a) impose, abolish or vary any duty of customs in the Isle of Man, and

(b) contain provisions having retrospective effect and provisions for the delegation of the powers exercisable by such a resolution.

(4) An Order in Council under this Act shall be laid before Parliament.

Removal of certain restrictions on disposition of proceeds of customs duties. 29 & 30 Vict. c. 23.

2. Nothing in the Isle of Man Customs, Harbours and Public Purposes Act, 1866, shall be construed as preventing the Court of Tynwald in the Isle of Man from making such provision as may have been agreed with Her Majesty's Government in the United Kingdom for the payment into the Exchequer of the United Kingdom of any of the proceeds of duties of customs available for defraying expenditure in the Isle of Man.

Short title.

3. This Act may be cited as the Isle of Man (Customs) Act, 1955.

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